

02:00 PM **LINE 2**

23-CIV-05709

MIKHAIL MAALLOULI VS. MATTHEW TODD FREDRICKSEN, ET AL

MIKHAIL MAALLOULI
MATTHEW TODD FREDRICKSEN

NATALIE KORDNAIJ

Motion to be Relieved as Counsel

TENTATIVE RULING:

The unopposed motion of Navid T. Nour to be relieved as counsel of record for plaintiff Mikhail Maalouli is **DENIED WITHOUT PREJUDICE**. The court's May 19, 2026 Order Shortening Time required counsel to serve the moving papers and the order on plaintiff by U.S. mail, return receipt requested, and by email and text message. To date, no proof of service has been filed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 3**

23-CLJ-04771

NAVY FEDERAL CREDIT UNION VS. SHANNON L WATKINS

NAVY FEDERAL CREDIT UNION
SHANNON L WATKINS

REA STELMACH
PRO SE

Motion to Set Aside Notice of Conditional Settlement

TENTATIVE RULING:

Plaintiff Navy Federal Credit Union's Motion to Vacate Notice of Conditional Settlement is **DENIED**.

Plaintiff filed a Notice of Conditional Settlement of Entire Case on October 25, 2024. Plaintiff has moved to set aside that Notice of Settlement. However, the motion is not supported by a declaration or any other evidence establishing the terms of the proposed settlement, defendant's failure to execute the written settlement agreement, or defendant's failure to perform payment obligations under the settlement agreement.

If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.

(Cal. Rules of Court, rule 3.1385 subd. (c)(2).)

Here, no good cause has been shown because plaintiff has not established by any admissible evidence that the case should not be dismissed. The motion is accordingly **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.
